



File No.: EXP202405611

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on March 5, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On March 5, 2024, a complaint was received by this Agency from Mr. A.A.A. (hereinafter, the complainant) against CAIXABANK, S.A. (hereinafter, the respondent) for not having adequately addressed his right to erasure.

The complainant states that he is the administrator of a currently inactive company, which has a debt with the respondent, CAIXABANK. He points out that there is a dispute regarding a debt that is being claimed from him, receiving constant debt recovery calls through ESCO EXPANSION. He also indicates that calls are made to his mother, an elderly person.

The complainant indicates that "(...) This has been claimed from the entity on many occasions through their online line (to my manager I...) to the deputy director Ms. (...) and to the area Ms. (...). It has also been claimed to the customer service of the entity. To this day, the calls to properties that are rented, to my 84-year-old mother, and other businesses have not been rectified. The phone number where they can reach me is the one I use ***PHONE.1; the others, being a company without activity, do not have any other phone. (...)"

Along with his complaint, he provides:

- Message sent from the Caixabank APP on September 15, 2023: "(...) last August I updated my contact details informing you that the only phone number of the company is mine with number ***PHONE.1 but they continue to bother phones that do not belong to me, as they are properties for rent, and by claiming for undue and illegal collections, I am left unprotected. I communicate this to manage a complaint for data protection."
- Email dated January 26, 2024, to servicio.cliente@caixabank.com: "(...) I have a mortgage operation with your entity that, according to me, as administrator, is up to date, and according to the entity, it is not. (...) But the main reason is that this generates annoying phone calls to numbers that do not belong to me or to the company or to the members of that company. Even to my 84-year-old mother's phone (...). Therefore, I request and indicate that the company's phone is ***PHONE.1 and the rest is not (...)"
- Email dated February 5, 2024, reiterating the previous request.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The respondent states that "(...) the appropriate checks were carried out, confirming that only telephone calls had been made, with the aim of regularizing the overdue and collectible amounts pending payment, to the phone numbers that the complainant has informed in our systems and that have not been updated by him: (...)" and provides a copy of the communication addressed to the complainant justifying the calls made to the complainant's phone numbers that had not been updated "(...) in order to regularize the overdue and collectible amounts pending payment."

From the respondent's perspective, it is inferred that there has been no incident, relying on sufficient justification for making the calls: due to the existence of a series of debts pending regularization arising from a loan owned by a company of which the complainant was listed as a guarantor, and that were made to the numbers that were informed in their systems.

The respondent indicates that, based on the service provision contracts, there is legitimacy for the aforementioned calls to be made by the collection companies, as the signed contract allows these companies to access the personal data of the complainant.

"With the transfer of the complaint by this Agency, CaixaBank has provided a response to the complainant in the same sense as that provided to this Agency. This is attached as Annex 2 to this

document.”

In that Annex 2, they indicate that “(...) Given that at the time of filing your complaint you had outstanding debts to regularize with CaixaBank, arising from the loan (...) owned by the company (...) and in which you are listed as a guarantor, and while those debts are not regularized, this entity was and would be legitimized to contact you by phone at the numbers you have informed in our systems for the purpose of carrying out the necessary actions for the recovery of the unpaid amounts.

Likewise, any collection company contracted by CaixaBank would be legitimized to make such calls since, through the service provision contract, they have access to the personal data of the complainant.

3/8

services signed between both parties, the collection company would be authorized to access your personal data.

In this regard, after conducting the necessary verifications, only telephone calls have been made, with the purpose of regularizing the overdue and payable amounts pending settlement, to the phone numbers that you have provided in our systems and that have not been updated by you: (...)

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the complaining party were satisfied: “The responding party has not responded to the transfer action and request for information notified: regarding the exercise of the right to erasure requested. Therefore, it does not provide evidence of compliance with the duty to respond to the request for the exercise of the right to erasure as provided in Article 12.4 of the LOPDGDD.”

Consequently, on June 5, 2024, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the responding party a hearing procedure, so that within ten working days it could present the arguments it deemed appropriate.

In its response, the responding party indicated that, on May 30, 2024, it responded to the request made by this Agency, “(...) and, in that response, it was evidenced before this Agency that only telephone calls had been made, with the purpose of regularizing the overdue and payable amounts pending settlement, to the phone numbers that the complainant had provided in our systems and that had not been updated by him.

That upon reviewing our records, it does not appear that the complainant has exercised any of his rights recognized in the General Data Protection Regulation.

However, there is a complaint dated January 26, 2024, filed by the complainant with the Customer Service of CaixaBank in which he expresses his disagreement regarding the charging of fees on an account in his name, as well as regarding the actions taken by CaixaBank for the collection of a debt incurred with the entity. On February 26, 2024, a response was given to that complaint via email, a copy of which was attached to our response to the information request.

In this regard, the Customer Service provided a thorough response to the claimed facts (the same subject as this complaint): given that the complainant at the time of filing his complaint had outstanding debts to regularize with CaixaBank, arising from the loan (...) owned by the company (...) and in which the complainant is listed as a guarantor, and while such debts were not regularized, this Entity was and would be legitimized to contact the complainant by telephone at the phone numbers that he has informed in our systems.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/8

systems for the purpose of carrying out the necessary actions for the recovery of amounts in default.

Likewise, any collection agency contracted by CaixaBank would be authorized to make such calls since, through the service provision contract signed between both parties, the collection agency is enabled to process the personal data of the claimant on behalf of CaixaBank.

In this regard, the appropriate verifications were carried out, confirming that only telephone calls had been made, with the purpose of regularizing the overdue and collectible amounts pending payment, to

the phone numbers that the claimant has provided in our systems and that have not been updated by them. Clients acquire the contractual commitment to inform the entity of any changes to their identifying and contact details, a circumstance that, as can be seen, has not occurred in the case at hand.

(...) The modification of a phone number in a financial environment requires certain verifications at the time of registering or modifying it, since the phone number is commonly used as a security factor for online payments or to verify the identity of the person.

Furthermore, given the statements made by the claimant in their complaint to this Agency, since this case involves a landline phone and the claimant also has a mobile phone number registered in our systems, we have proceeded to remove the claimant's landline number, ***TELÉFONO.2, from our database, leaving only their mobile phone number registered in our systems.

FOURTH: After examining the document submitted by the responding party, it is forwarded to the claimant, so that, within ten working days, they may submit any allegations they deem appropriate. The claimant has indicated that "(...) I have received a letter via digital certificate where the entity CaixaBank, (...) indicates to you that I do have a debt and that they only call the phone numbers provided by me, of which one of them is now being removed. I would like to point out that this is false, because they also call ***TELÉFONO.3 (another company), ***TELÉFONO.4 (home of a person over 84 years old), ***TELÉFONO.5 (rented), etc. (...) these are phone numbers that do not belong to me for various reasons and I communicated this to them on their website where I am required to communicate. (...)".

FIFTH: After granting the responding party the opportunity to be heard, there is no record of any response being submitted.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR),

5/8

The control authority and according to the provisions of articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the control authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to provide evidence of having given the complainant the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the complainant were

satisfied. Consequently, on June 5, 2024, for the purposes provided in articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission to processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in articles 15 to 22 of the GDPR, regulated in article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

6/8

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of correcting any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in articles 15 to 22 of the GDPR and articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in the event that it does not intend to address such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following (the underlining is ours):

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to article 6, paragraph 1, letter a), or article 9, paragraph 2, letter a), and this is not based on another legal ground;

C/ Jorge Juan, 6
www.aepd.es

- c) the data subject objects to the processing pursuant to Article 21, paragraph 1, and no other legitimate grounds for the processing prevail, or the data subject objects to the processing pursuant to Article 21, paragraph 2;
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased to comply with a legal obligation established in Union or Member State law applicable to the data controller;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8, paragraph 1.

2. When the data controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of its application, shall take reasonable measures, including technical measures, to inform controllers that are processing the personal data of the data subject's request for the erasure of any link to those personal data, or any copy or replica of them.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring the processing of data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 is likely to render impossible or seriously impede the achievement of the objectives of that processing, or
- e) for the establishment, exercise, or defense of legal claims."

V

Conclusion

The rights procedure is initiated as a result of the lack of attention to any of the rights regulated in data protection legislation. Therefore, in this case, only the facts related to the exercise of these rights are analyzed and assessed, excluding the other issues raised by the parties.

In this case, it is noted that the complainant has stated on several occasions that several of the phone numbers receiving calls regarding the loan that the respondent claims is pending collection do not belong to him, and one of them even belongs to his mother. In this regard, it should be noted that there is no representation granted in favor of the complainant regarding the exercise of the right to erasure concerning the phone numbers he claims do not belong to him or the one he claims belongs to his mother.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

8/8

Furthermore, despite the complainant's assertions, the respondent entity has addressed the issues raised by him, with the latest of these responses dated February 26, 2024.

Therefore, it must be considered that there has been no violation of Article 17 of the GDPR regarding the request made by the complainant.

In view of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO DISMISS the complaint filed by Mr. A.A.A..

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to CAIXABANK, S.A..

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Mar España Martí

Director of the Spanish Data Protection Agency

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es